

STATE OF NEW YORK

5476--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. DiPIETRO -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law and the state finance law, in relation to prohibiting the release of certain chemical compounds into the atmosphere

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The environmental conservation law is amended by adding a
2 new section 19-0330 to read as follows:

3 § 19-0330. Release of certain chemical compounds prohibited.

4 1. The intentional injection, release or dispersion, by any means, of
5 chemicals, chemical compounds, substances or apparatus within the
6 borders of this state into the atmosphere with the express purpose of
7 affecting temperature, weather or the intensity of sunlight is prohibi-
8 ted.

9 2. Any person who observes a geoengineering or weather modification
10 activity conducted in violation of this section may report such observed
11 violation to the department online or by telephone, mail, or e-mail.

12 (a) The department shall establish an e-mail address and an online
13 form for individuals to report observed violations of this section. The
14 department shall make the e-mail address and online form publicly acces-
15 sible on its website.

16 (b) The department shall establish a method for intake and screening
17 of the reports made pursuant to this section. The department shall
18 investigate any report that warrants further review to determine whether
19 a violation of this section occurred.

20 (c) The department may request assistance from the department of
21 health, the division of homeland security and emergency services, the
22 department of transportation, or any other appropriate agency.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD09287-03-5

3. All operators of public infrastructure shall report monthly to the department, using a method determined by the department. Such reports shall identify any aircraft observed, recorded, or documented that may be equipped, modified, or configured for geoengineering or weather modification activities; including the aircraft's registration number, type, date and time of observation, and the basis for such identification.

4. The department shall adopt rules and regulations necessary to implement this section.

§ 2. The environmental conservation law is amended by adding a new section 71-2114 to read as follows:

§ 71-2114. Violations of section 19-0330 of article 19 of this chapter.

1. Any person, including any public or private corporation, who conducts a geoengineering or weather modification activity in violation of section 19-0330 of this chapter shall be guilty of a class E felony. Where the violator of such section is a corporation, the officers, directors, or employees of such corporation shall be guilty of a class E felony. Each violation shall constitute a separate offense.

2. Where the violator of such section is an aircraft operator or controller, such person shall be guilty of a class E felony, and upon conviction thereof, shall be punished by a fine not exceeding five thousand dollars and by a term of imprisonment not exceeding five years. Each violation shall constitute a separate offense.

3. Any fines collected for violations of section 19-0330 of this chapter shall be deposited into the air quality improvement fund, in accordance with the provisions of section ninety-nine-rr of the state finance law.

§ 3. Subdivision 1 of section 71-2105 of the environmental conservation law, as amended by chapter 99 of the laws of 2010, is amended to read as follows:

1. Except as provided in section 71-2113 and 71-2114 of this title, of this chapter or any code, rule or regulation promulgated pursuant thereto or any final determination or order of the commissioner made pursuant to article 19 of this chapter shall be guilty of a misdemeanor, and, upon conviction thereof, shall be punished by a fine, in the case of a first conviction, of not less than five hundred dollars nor more than eighteen thousand dollars or by imprisonment for a term of not more than one year, or by both such fine and imprisonment, for each separate violation. If the conviction is for an offense committed after the first conviction of such person under this subdivision, such person shall be punished by a fine not to exceed twenty-six thousand dollars, or by imprisonment, or by both such fine and imprisonment. Each day on which such violation occurs shall constitute a separate violation.

§ 4. Subdivision 2 of section 99-rr of the state finance law, as added by section 7 of part T of chapter 58 of the laws of 2024, is amended to read as follows:

2. Such fund shall consist of revenues received by the state pursuant to section 19-0328 of the environmental conservation law, fines collected pursuant to subdivision three of section 71-2114 of the environmental conservation law and all other moneys, appropriated, credited, or transferred thereto from any other fund or source pursuant to law.

§ 5. This act shall take effect immediately.